

LEGISLATIVE BILL 263

Approved by the Governor May 21, 2025

Introduced by Speaker Arch, 14; at the request of the Governor.

A BILL FOR AN ACT relating to appropriations; to appropriate funds for the payment of the salaries and benefits of certain state officers for FY2025-26 and FY2026-27; to define terms; to provide an operative date; and to declare an emergency.
Be it enacted by the people of the State of Nebraska,

Section 1. APPROPRIATION LANGUAGE.
There are hereby appropriated, for FY2025-26 and FY2026-27, the amounts specified in this act, or so much as may be necessary, for the salaries and benefits of officers of the Nebraska state government.

Sec. 2. DEFINITION OF APPROPRIATION PERIOD.
For purposes of this act, FY2025-26 means the period beginning July 1, 2025, and ending June 30, 2026, and FY2026-27 means the period beginning July 1, 2026, and ending June 30, 2027.

Sec. 3. NEBRASKA ACCOUNTING SYSTEM MANUAL DEFINITIONS.
The definitions contained in the Nebraska Accounting System Manual, and any amendments thereto, on file with the Clerk of the Legislature are hereby adopted by the Legislature as the definitions for this act, except as provided in section 5 of this act.

Sec. 4. DRAWING AND PAYING WARRANTS.
The Director of Administrative Services shall draw warrants upon the proper fund in the state treasury for an amount not to exceed the appropriations set forth in this act upon presentation of proper documentation. The State Treasurer shall pay the warrants out of the appropriate funds.
Workers' compensation premium assessments shall not be paid from the programs listed in this act.

Sec. 5. LIMITATION ON SALARIES, WAGES, AND PER DIEMS.
(1) As used in this act:
(a) SALARY LIMIT means total expenditures for permanent and temporary salaries and per diems; and
(b) Total expenditures for permanent and temporary salaries and per diems means all remuneration paid to employees treated as taxable compensation by the Internal Revenue Service or subject to social security coverage, specifically including payments accounted for as vacation, holidays, sick leave, military leave, funeral leave, maternity leave, administrative leave, compensatory time, deferred compensation, or any other similar form, and amounts withheld pursuant to law, but excluding state contributions for social security, retirement, and employee insurance plans.
(2) Total expenditures for permanent and temporary salaries and per diems are limited to the amount provided by law for constitutional officers.
(3) The limitation on expenditures for permanent and temporary salaries and per diems for FY2025-26 shall be increased by certified encumbrance amounts from FY2024-25 for permanent and temporary salaries and per diems. The limitation on expenditures for permanent and temporary salaries and per diems for FY2026-27 shall be increased by certified encumbrance amounts from FY2025-26 for permanent and temporary salaries and per diems. Encumbered amounts shall be calculated in accordance with section 81-138.01.

Sec. 6. AGENCY NO. 5 – SUPREME COURT		
Program No. 3 - Supreme Court Judges' Salaries		
	FY2025-26	FY2026-27
GENERAL FUND	1,885,504	1,908,959
PROGRAM TOTAL	1,885,504	1,908,959
SALARY LIMIT	1,575,388	1,575,388

Sec. 7. AGENCY NO. 5 – SUPREME COURT		
Program No. 4 - Court of Appeals Judges' Salaries		
	FY2025-26	FY2026-27
GENERAL FUND	1,556,026	1,577,052
PROGRAM TOTAL	1,556,026	1,577,052
SALARY LIMIT	1,282,817	1,282,817

Sec. 8. AGENCY NO. 5 – SUPREME COURT		
Program No. 5 - Retired Judges' Salaries		
	FY2025-26	FY2026-27

LB263		LB263
2025		2025

GENERAL FUND	72,436	72,436
PROGRAM TOTAL	72,436	72,436
SALARY LIMIT	69,832	69,832

The unexpended General Fund appropriation balance existing on June 30, 2025, is hereby reappropriated.

The unexpended General Fund appropriation balance existing on June 30, 2026, is hereby reappropriated.

The budget division of the Department of Administrative Services shall administratively transfer General Fund appropriations or Salary Limits or both among Programs 3, 4, 5, 6, and 7 within Agency 5, upon written certification by the State Court Administrator that the Nebraska Supreme Court has determined that such transfer is necessary for the efficient functioning of statewide court operations and the proper administration of justice.

Sec. 9. AGENCY NO. 5 – SUPREME COURT

Program No. 6 - District and Juvenile Court Judges' Salaries

	FY2025-26	FY2026-27
GENERAL FUND	17,331,218	17,533,770
PROGRAM TOTAL	17,331,218	17,533,770
SALARY LIMIT	14,569,523	14,569,523

Sec. 10. AGENCY NO. 5 – SUPREME COURT

Program No. 7 - County Court Judges' Salaries

	FY2025-26	FY2026-27
GENERAL FUND	14,278,652	14,448,176
PROGRAM TOTAL	14,278,652	14,448,176
SALARY LIMIT	11,950,447	11,950,447

Sec. 11. AGENCY NO. 7 – GOVERNOR

Program No. 2 - Salary - Governor

	FY2025-26	FY2026-27
GENERAL FUND	151,900	151,900
PROGRAM TOTAL	151,900	151,900
SALARY LIMIT	105,000	105,000

Sec. 12. AGENCY NO. 8 – LIEUTENANT GOVERNOR

Program No. 8 - Salary - Lieutenant Governor

	FY2025-26	FY2026-27
GENERAL FUND	120,009	120,009
PROGRAM TOTAL	120,009	120,009
SALARY LIMIT	75,000	75,000

Sec. 13. AGENCY NO. 9 – SECRETARY OF STATE

Program No. 9 - Salary - Secretary of State

	FY2025-26	FY2026-27
GENERAL FUND	126,404	129,542
PROGRAM TOTAL	126,404	129,542
SALARY LIMIT	85,000	85,000

Sec. 14. AGENCY NO. 10 – AUDITOR OF PUBLIC ACCOUNTS

Program No. 10 - Salary - Auditor of Public Accounts

	FY2025-26	FY2026-27
GENERAL FUND	132,614	136,399
PROGRAM TOTAL	132,614	136,399
SALARY LIMIT	85,000	85,000

Sec. 15. AGENCY NO. 11 – ATTORNEY GENERAL

Program No. 11 - Attorney General's Salary

	FY2025-26	FY2026-27
GENERAL FUND	142,367	142,367
PROGRAM TOTAL	142,367	142,367
SALARY LIMIT	95,000	95,000

Sec. 16. AGENCY NO. 12 – STATE TREASURER
Program No. 12 - Salary - State Treasurer

	FY2025-26	FY2026-27
GENERAL FUND	50,576	52,200
CASH FUND	87,035	89,843
PROGRAM TOTAL	137,611	142,043
SALARY LIMIT	85,000	85,000

Sec. 17. AGENCY NO. 14 – PUBLIC SERVICE COMMISSION
Program No. 14 - Salaries of Public Service Commissioners

	FY2025-26	FY2026-27
GENERAL FUND	506,453	506,453
PROGRAM TOTAL	506,453	506,453
SALARY LIMIT	375,000	375,000

Sec. 18. AGENCY NO. 15 – BOARD OF PARDONS AND BOARD OF PAROLE
Program No. 320 - Board of Parole Salaries

	FY2025-26	FY2026-27
GENERAL FUND	745,039	777,249
PROGRAM TOTAL	745,039	777,249
SALARY LIMIT	550,121	567,437

Sec. 19. AGENCY NO. 16 – DEPARTMENT OF REVENUE
Program No. 13 - Salary - Tax Commissioner

	FY2025-26	FY2026-27
GENERAL FUND	211,572	219,088
CASH FUND	64,212	66,436
PROGRAM TOTAL	275,784	285,524
SALARY LIMIT	212,972	219,613

It is the intent of the Legislature that if the appropriation or the salary limit is insufficient in this program to meet anticipated expenditures, the Tax Commissioner shall request an additional appropriation or a higher salary limit, or both, from the Legislature by the usual deficit process. The appropriation or the salary limit shall not be administratively increased solely by the Department of Administrative Services without legislative authorization.

Sec. 20. AGENCY NO. 37 – NEBRASKA WORKERS' COMPENSATION COURT
Program No. 526 - Judges' Salaries

	FY2025-26	FY2026-27
CASH FUND	1,488,346	1,488,346
PROGRAM TOTAL	1,488,346	1,488,346
SALARY LIMIT	1,249,057	1,249,057

Sec. 21. AGENCY NO. 37 – NEBRASKA WORKERS' COMPENSATION COURT
Program No. 635 - Retired and Acting Judges' Salaries

	FY2025-26	FY2026-27
CASH FUND	55,267	55,267
PROGRAM TOTAL	55,267	55,267

SALARY LIMIT

51,339

51,339

Sec. 22. AGENCY NO. 93 – TAX EQUALIZATION AND REVIEW COMMISSION
Program No. 131 - Commissioners' Salaries

	FY2025-26	FY2026-27
GENERAL FUND	856,970	862,867
PROGRAM TOTAL	856,970	862,867
SALARY LIMIT	697,672	697,672

Sec. 23. This act becomes operative on July 1, 2025.

Sec. 24. Since an emergency exists, this act takes effect when passed and approved according to law.